

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
Crl. Misc. No. 74465-B of 2025

Muhammad Haseeb Yasin. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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03.02.2026. Mr. Arif Hussain, Advocate for the petitioner.
Mian Pervez Iqbal, Advocate for the complainant.
Raja Abdul Jabbar Khan, Assistant Attorney General for Pakistan with Kashif Hussain Alvi, Inspector, FIA Faisalabad.

The petitioner (Muhammad Haseeb Yasin), being arrayed as an accused in case F.I.R. No. C-321/2025, dated 05.08.2025, registered with Police Station AHTC/FIA, Faisalabad, for offences under Sections 17/22 of Emigration Ordinance, 1979, seeks his post arrest bail, after the same was refused to him by the court of learned Judge Special Court (Central), Faisalabad, vide order dated 09.12.2025.

2. After hearing the learned counsel for petitioner, the learned counsel for complainant, learned Assistant Attorney General for Pakistan and perusal of record, it was observed that according to F.I.R. during an inquiry No. 2074/2024, dated 26.12.2024, it was transpired that as back 2024 certain persons (1) Muhammad Haseeb Yaseen-petitioner son of Muhammad Yaseen and (2) Muhammad Anwar Chaudhary son of Gulzar, in connivance with each squeezed an amount of Rs.55,68,043/- in cash and through bank channel from Muhammad Umair-complainant, on the pretext of sending him and his friend Suleman Haider, abroad Canada for employment purpose. Thereafter, accused

persons provided forged and fictitious travelling documents to complainant.

3. Learned counsel for petitioner mainly focused on the point that no amount was received by petitioner, as such case against him was that one of further inquiry. Record reveals that petitioner was assigned specific role of depriving the complainant of huge amount fraudulently in connivance with his co-accused. Petitioner failed to attribute any malice or ulterior motive towards the complainant to falsely involve him in the present case. Although petitioner did not received any amount, but he send relevant forged documents to complainant through his whatsapp number, which was suggestive of the fact that he was also a privy to the crime and he played vital and active role in the commission of offence and thereby enabled his co-accused to deprive the complainant and his friend of their hard earned money fraudulently. His prima facie involvement in the crime could not be ruled out.

4. Learned counsel for petitioner next argued that offence under Section 17 of Emigration Ordinance, was carrying the penalty of imprisonment upto five years, hence not falling within embargo and the offence under Section 22 thereof was although entailing the penalty of imprisonment extending upto fourteen years, but it was punishable only with fine in alternate, as such it shall also be considered to be not falling within prohibitory clause, because for the purpose of bail lessor penalty has always to be taken into consideration.

5. Contention of learned counsel for the petitioner cannot be accepted as a rule, in each and every case, because that shall frustrate the very intent of the

legislature. No hard and fast rules can be laid down in this regard, because all the episodes of crime have its own peculiar circumstances, which may vary from case to case. Where circumstances are normal, ordinary, average and of run of mill nature, the court may give weight to the lessor penalty out of the two alternate sentences provided for the offence, but when the circumstances are unusual, anomalous, harsh and present a dreadful picture and tentative assessment of the same prima facie leads to an inference that probably the sentence of the imprisonment is also likely to be awarded in addition to the fine, the court may keep in view the higher sentence falling within embargo and ignore the lessor/alternate sentence of the fine for the purpose of the bail.

Amount involve in the present case is huge. Therefore, modus operandi adopted by petitioner in facilitating his co-accused for depriving the complainant of such amount, has persuaded me to take into consideration higher penalty of imprisonment extending upto fourteen years in this case.

6. For the reasons recorded above, present petition has no force, hence **dismissed**.

7. Needless to mention that any observation made in this order is tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

Approved for reporting.

JUDGE